

**CHAPTER clxx.**

An Act to confirm a Scheme of the Charity Commissioners  
for the application or management of the Charity of  
Samuel Robinson for Independent and Baptist Ministers.  
[7th March 1913.]

A.D. 1913.

**W**HEREAS the Charity Commissioners in their report to His Majesty of their proceedings during the year one thousand nine hundred and eleven have reported that they have approved and certified a scheme for the application or management of the charity of Samuel Robinson for Independent and Baptist ministers founded by will proved on the fifth day of October eighteen hundred and thirty-three :

And whereas it is expedient that the scheme as the same is fully set out and defined in the schedule to this Act should be confirmed :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said scheme is hereby confirmed Provided always that nothing in this Act or in the said scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exerciseable or hereafter to become exerciseable by the High Court of Justice and the Charity Commissioners.

Confirmation  
of scheme.

2. This Act may be cited as the Robinson's Trust Scheme Confirmation Act 1912.

Short title.



A.D. 1913.

## SCHEDULE.

*Scheme for the Application or Management of the Charity of  
Samuel Robinson for Independent and Baptist Ministers  
founded by Will proved on the fifth of October one  
thousand eight hundred and thirty-three.*

1. *Administration.*—The above-mentioned charity (herein-after called “the Trust”) and the endowments thereof specified in the schedule hereto and all other the endowments (if any) of the Trust shall be administered and managed by the Trustees for the time being of Robinson's Charity (regulated by a scheme of the Charity Commissioners of the thirteenth of August one thousand eight hundred and ninety-seven as varied by a scheme of the said Commissioners of the fourth of June one thousand nine hundred and one) as the Trustees of the Trust subject to and in conformity with the provisions of this scheme under the title of Robinson's Trust for Independent and Baptist Ministers.

2. *Vesting of Real Estate.*—Any freehold or leasehold lands and hereditaments comprised in this scheme are hereby vested in “The Official Trustee of Charity Lands” for all the estate and interest therein belonging to or held in trust for the Trust.

3. *As to Stock and Cash.*—All sums of stock comprised in this scheme shall be transferred under the authority of a further order of the Charity Commissioners into the name of “The Official Trustees of Charitable Funds” and all sums of cash now or at any time belonging to the Trust and not needed for immediate working purposes shall (unless otherwise ordered) as soon as possible be invested under the like authority in the name of the said Official Trustees.

4. *Minutes and Accounts.*—A minute book and books of account for the Trust shall be provided and kept by the Trustees. All proper accounts in relation to the Trust shall in each year be made out and certified in such manner as the Charity Commissioners require and copies thereof shall be transmitted to the said Commissioners and published in conformity with the provisions of the Charitable Trusts Acts.

5. *General Power to make Regulations.*—Within the limits prescribed by this scheme the Trustees shall have full power from time to time to make regulations for the management of the Trust and for the conduct of their business including the summoning of meetings the



deposit of money at a proper bank the custody of documents and the appointment as clerk treasurer or other proper officer or agent during their pleasure of one or more of themselves (without salary) or of some other fit person or persons at a salary or salaries to be approved by the Charity Commissioners. A.D. 1913.

6. *Management and Letting of Property.*—All the property of the Trust not required to be retained or occupied for the purposes thereof shall be let and otherwise managed by the Trustees. In every case public notice of the intention to let any land or other property shall be given by the Trustees in such manner as they consider most effectual for ensuring full publicity. The Trustees shall not create any tenancy in reversion after more than three years of any existing term or for more than twenty-one years certain or for less than the improved annual value at rackrent without the sanction of the Charity Commissioners or a competent court.

7. *Leases.*—The Trustees shall provide that on the grant by them of any lease the lessee shall execute a counterpart thereof and every lease shall contain covenants on the part of the lessee for the payment of rent and all other usual and proper covenants applicable to the property comprised therein and a proviso for re-entry on non-payment of the rent or non-performance of the covenants.

8. *Repair and Insurance.*—The Trustees shall keep in repair and insure against fire all the buildings of the Trust not required to be kept in repair and insured by the lessees or tenants thereof.

9. *Expenses of Management.*—The cost of repairs and insurance and all other charges and outgoings payable in respect of the property of the Trust and all the proper costs charges and expenses of and incidental to the administration and management of the Trust shall be first defrayed by the Trustees out of the income thereof.

10. *Benefit of Pensioners.*—Subject to the payments aforesaid the yearly income of the Trust shall be applied by the Trustees for the benefit of pensioners as herein-after prescribed.

11. *Saving for existing Pensioners.*—Appointments of pensioners under this scheme shall be made without prejudice to the interests of the existing pensioners of the Trust.

12. *Qualifications of Pensioners.*—The pensioners shall be pastors or ministers of Independent churches or Baptist churches but the Trustees may grant pensions to persons who have been pastors or ministers of Independent churches or Baptist churches but have retired from the ministry in consequence of old age or ill-health. Preference shall be given *cæteris paribus* to those who practise open communion.



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13. *Widows*.—If any pensioner dies leaving a widow who is a serious person and of moral and discreet life and conversation the Trustees may in their discretion continue to such widow for her life or any less period either the whole or part of the pension formerly paid to her husband provided she remains a widow and in the opinion of the Trustees preserves the character which first qualified her to receive such annuity and resides in some part of the British Isles.

14. *Proportion of Benefits*.—So far as possible two-thirds in value of the pensions shall be granted to pastors or ministers or to persons who have been pastors or ministers of Independent churches or to their widows and one-third in value of the pensions shall be granted to pastors or ministers or to persons who have been pastors or ministers of Baptist churches or to their widows.

15. *Ordination*.—Every minister appointed a pensioner shall be or shall have been pastor of a church and regularly ordained according to the faith and order of the church to which he belongs and of irreproachable life and morals resident in England or Wales and not elsewhere and shall be either a married man or a widower.

16. *Stipends of Pensioners*.—There shall be paid to each pensioner out of the income of the Trust by such periodical payments as the Trustees think fit such a stipend being at the rate of not more than twenty pounds a year as the Trustees may from time to time fix having regard to the needs and circumstances of the respective pensioners and to the income and other circumstances of the Trust provided that the Trustees instead of paying the whole amount of the stipend to any pensioner in money may from time to time expend the whole or any portion thereof for his or her benefit as they think fit.

17. *Payment of Stipends and Conduct of Inquiries*.—The clerk of the Trustees or some other person appointed by them for the purpose shall pay the stipends to the pensioners and conduct any inquiries with regard to them and to applicants for appointment.

18. *Notice of Qualifications*.—The Trustees shall when and in such manner as they think necessary and expedient give public notice specifying the qualifications required from candidates and the proper mode of application for appointment as a pensioner. Every applicant must be prepared to produce sufficient testimonials and other evidence of his or her qualification for the appointment.

19. *Applications for Appointment*.—Applications for appointment as pensioners shall be made in the first place in writing to the Trustees or their clerk in such manner as the Trustees prescribe.

20. *Appointments of Pensioners*.—The appointments of pensioners shall be made by the Trustees as follows. The Trustees who are



Independents shall nominate Independent ministers and the Trustees who are Baptists shall nominate Baptist ministers. Whenever a vacancy occurs the Trustees shall take priority among themselves with respect to their own class in making nominations according to their priority of appointment as Trustees of Robinson's Charity. A list of the persons so nominated shall be submitted to a special meeting of the Trustees who shall appoint one of such persons to be a pensioner. Every appointment of a pensioner shall be made as soon as conveniently may be after an interval of one month from the occurrence of the vacancy to be filled up or in the case of first appointments under this scheme as soon as conveniently may be after the date hereof allowing a reasonable time for inquiries as to the applicants. A.D. 1913.

For the purposes of this clause the Trustees may appoint two or more of those Trustees who are Independents to be a committee to nominate Independent ministers as pensioners and two or more of those Trustees who are Baptists to be a committee to nominate Baptist ministers as pensioners and it shall be lawful for any such committee in cases of necessity to make interim appointments of and payments to pensioners but no such interim appointment shall become a permanent appointment unless confirmed at a subsequent meeting of the Trustees.

21. *Selection of Pensioners and Payment of Pensions.*—The pensioners shall be selected after full investigation of the character and circumstances of the applicants and inquiry whether they have shown reasonable providence and whether and to what extent they may reasonably expect assistance from relations or others.

The pensions shall be paid subject to such reasonable regulations for ascertaining the identity and good conduct of the pensioners and their continued possession of the required qualifications as the Trustees from time to time prescribe.

22. *Term of Pensions.*—Each pension shall be granted for a term of three years in the first instance but may be prolonged by the Trustees if they think fit for a further period of not more than three years at each prolongation.

23. *Grants.*—The Trustees may in any exceptional case of distress make a grant not exceeding twenty pounds out of the funds of the Trust to any person qualified to be a pensioner.

24. *Register.*—The Trustees shall provide and keep a book in which shall be entered the name age and description of every person appointed to be a pensioner the date of every appointment and the date and occasion of every vacancy. They shall also keep a register of all applications for appointment and no appointment of a pensioner shall be made unless his or her name is entered on the register.



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25. *Removal of Pensioners.*—(1) The following persons shall be removed from being pensioners:—

(A) Any pensioner who receives poor law relief other than medical relief;

(B) Any pensioner detained under lawful authority as a person suffering from mental disease;

(C) Any pensioner becoming an inmate of any poor law institution for the purpose of receiving medical relief.

(2) If in the opinion of the Trustees any pensioner is guilty of insobriety or immoral or improper conduct or is disqualified for retaining his or her appointment by having become entitled to a sufficient income from sources other than the Trust or from any other cause or if in any case it appears that any pensioner has been appointed without having the required qualifications the Trustees upon proof thereof to their satisfaction may remove the pensioner.

(3) Upon the removal of any pensioner the Trustees may proceed to appoint another pensioner in his or her place.

(4) In any case of such misconduct as aforesaid the Trustees may suspend the payment of the stipend to the pensioner either wholly or in part during such time as they think fit.

(5) Any pensioner removed under head (B) or (C) of section (1) of this clause may on recovery be re-appointed.

26. *Regulations.*—The Trustees may from time to time prescribe such reasonable regulations as they consider expedient for the government of the pensioners provided that the same shall not be at variance or inconsistent with any of the provisions of this scheme.

27. *Trustees not to be personally interested.*—No Trustee shall take or hold any interest in property belonging to the Trust otherwise than as a Trustee for the purposes thereof and no Trustee shall receive any remuneration or be interested in the supply of work at the cost of the Trust.

28. *Trust not to relieve Rates.*—The funds or income of the Trust shall not in any case be applied in aid of any rates for the relief of the poor or other purposes in any parish or place.

29. *Alteration of Scheme.*—The Charity Commissioners may from time to time in the exercise of their ordinary jurisdiction establish schemes for the alteration of any of the provisions of this scheme as if those provisions had been made by the founder in the case of a charity having a founder.



30. *Questions under Scheme.*—Any question as to the construction of this scheme or as to the regularity or the validity of any acts done or about to be done under this scheme shall be determined conclusively by the Charity Commissioners upon such application made to them for the purpose as they think sufficient.

A.D. 1913.

## SCHEDULE OF PROPERTY.

| Description.                                                                                             | Extent<br>or Amount. | Tenant or Persons in<br>whose Name invested.                          | Gross Yearly<br>Income. |
|----------------------------------------------------------------------------------------------------------|----------------------|-----------------------------------------------------------------------|-------------------------|
|                                                                                                          | £    s.    d.        |                                                                       | £    s.    d.           |
| The property known as<br>Holland Park Mansions<br>Addison Road Kensington<br>in the county of<br>London. | —                    | W. G. Hornsey - -                                                     | 210   0   0             |
| Consols - - - -                                                                                          | 9,751 11   1         | James Lovegrove (de-<br>ceased) Walter Hazel<br>Thomas Boyle Woolley. | 243 15   9              |

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